The areas withdrawn by this order aggregate 7,190.22 acres.

The SW¼NE¼ and SE¼NW¼ of sec. 4, T. 41 N., R. 6 E., has been patented.

At 10:00 a.m. on October 17, 1959, the lands shall be open to such forms of disposition as may by law be made of national forest lands.

They have been open to applications and offers under the mineral-leasing laws, and to location under the United States mining laws pursuant to the regulations in 43 CFR 185.35, 185.36.

ROYCE A. HARDY,
Assistant Secretary of the Interior.

SEPTEMBER 11, 1959.

[F.R. Doc. 59-7764; Filed, Sept. 17, 1959; 8:47 a.m.]

[Public Land Order 1980]

[Fairbanks 023026]

ALASKA

Reserving Lands for Use of the Forest Service for Research Purposes

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws nor the disposal of materials under the act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601-604), as amended, and reserved for use of the Forest Service, Department of Agriculture as the Shaw Creek Experimental Area in connection with research projects being conducted in furtherance of the act of May 22, 1928 (45 Stat. 699; 16 U.S.C. 581, 581a-581k), as amended:

FAIRBANKS MERIDIAN

T. 7 S., R. SE.,
sec. 27, S½SE¼SE¼;
sec. 34, N½NE¼NE¼.

The areas described contain 40 acres.

ROYCE A. HARDY,
Assistant Secretary of the Interior.

SEPTEMBER 11, 1959.

[F.R. Doc. 59-7765; Filed, Sept. 17, 1959; 8:47 a.m.]

[Public Land Order 1981]

[82516]

OREGON

Power Site Restoration No. 541 Partially Revoking the Executive Order of March 17, 1913, Which Created Power Site Reserve No. 344

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive Order of March 17, 1913, which created Power Site Reserve No. 344, is hereby revoked so far as it affects the following-described lands:

WILLAMETTE MERIDIAN

T. 32 S., R. 32½E.
Sec. 8, SE¼SW¼;
Sec. 17, E½W½;
Sec. 18, NE¼SE¼;
Sec. 19, NE¼NE¼;
Sec. 20, NW¼NE¼, SE¼NE¼, NE¼NW¼, SW¼NW¼, E½SW¼, and E½SE¼;
Sec. 28, NW¼NW¼, SE¼NW¼, and W½SW¼;
Sec. 29, NW¼NE¼ and S½NE¼.

The areas described aggregate 880 acres.

2. The State of Oregon has waived the preference right of application granted to it by subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852). It has also waived its preference rights under the act of May 28, 1948 (62 Stat. 275; 16 U.S.C. 818).

3. The land lies in southern Harney County, Oregon, approximately 61 miles south of Burns, Oregon. The soil is a coarse sandy loam, with some clay along the river, and is freely mixed with rock and gravel with frequent outcrops of solid rock. Vegetation consists of big sagebrush, western juniper, willow, cottonwood, cheat grass, perennial grasses and forbs.

4. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public land laws and the regulations in 43 CFR will be received at once by the Manager named below. Priorities in the consideration of such applications will be recognized as follows:

(1) Applications under the Homestead, Desert Land and Small Tract Laws by veterans of World War II and the Korean Conflict, and by others claiming preference under the act of September 27, 1944 (58 Stat. 747; 43 U.S.C. 279-284) as amended, filed at or before 10:00 a.m. on October 17, 1959, shall be considered as simultaneously filed at that time. Rights under such preference right applications after that hour and before 10:00 a.m. on December 12, 1959, will be governed by the time of filing.

(2) All valid applications under the nonmineral public land laws other than those coming under subparagraph (1) above, presented prior to 10:00 a.m. on December 12, 1959, will be considered as simultaneously filed at that hour. Any rights under such applications filed thereafter will be governed by the time of filing.

(3) All applications under subparagraphs (1) and (2) above, shall be subject to those from persons having prior existing valid settlement rights, preference rights conferred by existing law, and equitable claims subject to allowance and confirmation.

b. The lands have been open to applications and offers under the mineral leasing laws, and to location under the mining laws pursuant to the act of August 11, 1955 (69 Stat. 683; 30 U.S.C. 621).

5. Persons claiming preferential consideration must submit evidence of their entitlement.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Portland, Oregon.

ROYCE A. HARDY,
Assistant Secretary of the Interior.

SEPTEMBER 11, 1959.

[F.R. Doc. 59-7766; Filed, Sept. 17, 1959; 8:47 a.m.]

Chapter II—Bureau of Reclamation, Department of the Interior

PART 404—COLUMBIA BASIN PROJECT, WASHINGTON

PART 412—PROCEDURES FOR DETERMINING ELIGIBILITY TO RECEIVE WATER, COLUMBIA BASIN PROJECT, WASHINGTON

EDITORIAL NOTE: 1. The heading of Part 404 is changed to read as set forth above, and §§ 404.1 to 404.15 are designated "Subpart A—Delivery of Water."

2. Part 412, appearing at 24 F.R. 6343 (F.R. Doc. 59-6506) is redesignated "Subpart B—Procedures for Determining Eligibility to Receive Water" of Part 404. Section 412.1 is deleted, and §§ 412.2 to 412.23 are redesignated §§ 404.21 to 404.42, respectively.

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[43 CFR Part 202]

RIGHTS-OF-WAY FOR PIPE LINES ON THE OUTER CONTINENTAL SHELF

Miscellaneous Amendments

Basis and purpose. Notice is hereby given that pursuant to the authority vested in the Secretary of the Interior by section 5 of the Act of August 7, 1953 (67 Stat. 464; 43 U.S.C. 1334), it is proposed to amend 43 CFR 202.5 and 202.6 (b) and (d), as set forth below. The purpose of these amendments is to provide for the granting of rights-of-way for pipe lines which invade or cross prior granted pipe line rights-of-way without the consent of the prior right-of-way holders.

The proposed amendments relate to matters which are exempt from the rule making requirements of the Administra-

tive Procedures Act (5 U.S.C. 1003); however, it is the policy of the Department of the Interior that, whenever practicable, the rule making requirements be observed voluntarily. Accordingly, interested persons may submit in triplicate written comments, suggestions, or objections with respect to the proposed amendments to the Bureau of Land Management, Washington 25, D.C., within 30 days of the date of publication of this notice in the FEDERAL REGISTER.

ELMER F. BENNETT,
Acting Secretary of the Interior.

SEPTEMBER 11, 1959.

1. Section 202.5 is amended to read as follows:

§ 202.5 Consent of or notice to lessee or right-of-way holder of area crossed or invaded by right-of-way.

An applicant must show the extent to which the right-of-way applied for invades or crosses mineral leases or rights-of-way other than his own and must submit with his application either the written consent of each lessee or right-of-way holder whose lease or right-of-way is so affected or a statement that he has delivered to each lessee or right-of-way holder whose lease or right-of-way is so affected personally or by registered or certified mail a copy of the application and map. If the statement is filed no final action will be taken on the right-of-way application until 15 days have elapsed after the last date of service of such papers, in order to afford the parties concerned ample opportunity to file protests against granting of the right-of-way.

2. Paragraphs (b) and (d) of § 202.6 are amended to read as follows:

§ 202.6 Terms and conditions.

* * * * *

(b) To pay the United States or its lessees or right-of-way holders, as the case may be, the full value for all damages to the property of the United States or its said lessees or right-of-way holders, and to indemnify the United States against any and all liability for damages to life, person, or property arising from the occupation and use of the area covered by the right-of-way.

* * * * *

(d) That the allowance of the right-of-way shall be subject to the express condition that the rights granted will not prevent or interfere in any way with the management, administration of, or the granting either prior or subsequent to the right-of-way grant of other rights by the United States in the submerged lands affected thereby, and that he agrees and consents to the occupancy and use by the United States or its lessees or other right-of-way holders of any part of the right-of-way not actually occupied or necessarily incident to its use for any necessary operations involved in such management, administration or the enjoyment of such other granted rights.

[F.R. Doc. 59-7762; Filed, Sept. 17, 1959; 8:47 a.m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 1027]

[Docket No. AO-312]

MILK IN THE UPPER CHESAPEAKE BAY, MARYLAND, MARKETING AREA

Notice of Recommended Decision and Opportunity To File Written Exceptions With Respect to Proposed Marketing Agreement and Order

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of this recommended decision of the Deputy Administrator, Agricultural Marketing Service, United States Department of Agriculture, with respect to a proposed marketing agreement and order regulating the handling of milk in the Upper Chesapeake Bay, Maryland, marketing area. Interested parties may file written exceptions to this decision with the Hearing Clerk, United States Department of Agriculture, Washington 25, D.C., not later than the close of business the 15th day after publication of this decision in the FEDERAL REGISTER. The exceptions should be filed in quadruplicate.

Preliminary statement. The hearing on the record of which the proposed marketing agreement and order, as hereinafter set forth, were formulated, was conducted at Baltimore, Maryland on February 2–13 and March 9–13, 1959, pursuant to notice thereof which was issued January 14, 1959 (24 F.R. 428). The period until May 25, 1959 was allowed interested parties for the filing of briefs on the record.

The material issues of record relate to:

1. Whether the handling of milk produced for sale in the proposed marketing area is in the current interstate commerce, or directly burdens, obstructs, or affects interstate commerce in milk or its products;

2. Whether marketing conditions show the need for the issuance of a milk marketing agreement or order which will tend to effectuate the policy of the Act; and

3. If an order is issued, what its provisions should be with respect to:

(a) The scope of regulation;

(b) The classification and allocation of milk;

(c) The determination and level of class prices;

(d) The distribution of proceeds to producers; and

(e) Administrative provisions.

Findings and conclusions. Upon the evidence adduced at the hearing and the record thereof, it is hereby found and concluded that:

Character of commerce. The handling of milk in the Upper Chesapeake Bay marketing area (concluded to be a more appropriate name for the marketing area than the name "Baltimore" proposed) is in the current of interstate commerce and directly burdens, obstructs, or affects interstate commerce in the handling of milk and its products.

The production area for the proposed marketing area is largely coextensive with that for the Washington, D.C., market and overlaps that for the Philadelphia, Pennsylvania, New York-New Jersey, and Wilmington, Delaware Federal order markets as well as that for a number of local Pennsylvania markets. Of the 2,457 farms holding permits to supply milk for the city of Baltimore in the month of December 1958, 143 were located outside the State of Maryland. Fifty-three of these farms were in the Commonwealth of Pennsylvania, 66 in the State of West Virginia, 23 in the State of Virginia and one in the State of Delaware.

Dealers operating in the local market receive large quantities of fluid cream and condensed milk from plants located outside the State of Maryland. As of December 1958, 41 out-of-State plants held current permits to ship milk or milk products into the State of Maryland.

It is not possible to determine from the record the specific products which are moved from each of such plants. However, it is apparent that the permits are not restricted. While the principal product has been fluid cream, shipments of whole milk and other products have been made. In addition sour cream, cottage cheese, ice cream and ice cream mixes are regularly disposed of in the local market from out-of-State plants.

Several of the larger dealers doing the principal part of their business in the proposed marketing area operate retail routes extending into the State of Pennsylvania where they regularly compete with dealers whose plants are located in Pennsylvania. A number of Pennsylvania dealers with plants located in Lancaster or York Counties, some of whom receive milk from both Pennsylvania and Maryland farms, operate retail and wholesale routes in the proposed marketing area in direct competition with local Maryland dealers and dealers whose plants are located in the city of Baltimore. In other parts of the proposed marketing area, handlers regulated under the Wilmington, Delaware, order purchase milk from both Delaware and Maryland dairy farmers and operate routes in competition with local Maryland and Baltimore City dealers. Baltimore City dealers also distribute milk in other parts of the Eastern Shore portion of the proposed marketing area, directly or through subdealers, on routes in competition with local Maryland dealers and dealers whose plants are located in the southern portion of the State of Delaware. Baltimore City dealers distribute milk in parts of the proposed marketing area and outside of the proposed marketing area in direct competition with handlers regulated under the Washington, D.C., marketing order.

From time to time, contract sales to Government installations in the proposed marketing area are made from Pennsylvania and New Jersey plants.